

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.

(Complainant)

Top Shipping Systems, Corp.

(Respondent)

Respondent's Statement of Facts

1. At all material times, the Respondent acted solely as a customs broker, warehouseman, and coordinator of drayage/local cartage from the port.
See Aff. of Ricky Villena, Ex. A ¶ 7, in support of the Motion for Judgment; see also Answer to the Complaint in its entirety.
2. The Respondent did not act as a Non-Vessel Operating Common Carrier (NVOCC) and did not issue a bill of lading. The Affidavit of Ricky Villena includes two bills of lading related to this shipment, neither of which identifies the Respondent as an NVOCC or ocean freight forwarder.
3. If jurisdiction is found, total damages are limited to \$50.00 per shipment pursuant to the invoice referenced in the Warehouse Receipts. *See Respondent's Motion for Summary Judgment, Ex. D § 10(e).*
4. Alternatively, under the terms of the warehouse receipts, the maximum liability is **\$5,000.00** for this matter if jurisdiction is found. *See Respondent's Motion for Summary Judgment, Ex. D § 10(e).*
5. Container CHSU4047424 was delivered to a trucker's yard.
See Verified Answer, § 4, Entry No. 8 (Reading Room).

6. The other shipment, BSIU8431017, was delivered directly to the Respondent's warehouse, and a warehouse receipt was issued for the cargo.
See Aff. of Ricky Villena, Ex. A ¶ 18, in support of Respondent's Motion for Summary Judgment.
7. Furthermore, if jurisdiction is found, total damages remain limited to \$50.00 per shipment, as set forth in the terms and conditions of the invoice terms and conditions.
See Respondent's Motion for Summary Judgment, Ex. D § 10(e).
8. Additionally, the warehouse receipt provides for a lien on the cargo, which states in relevant part:

8. LIEN RIGHTS.

TSS shall have a lien on the Goods tendered by Customer and upon any and all property belonging to Customer in TSS's possession, custody, or control for all charges, advances, or amounts of any kind due to TSS under this Warehouse Receipt or under any prior or subsequent invoices issued to Customer by TSS (including charges for storage, handling, transportation, demurrage, terminal charges, insurance, labor, and any other charges incurred). TSS shall have a lien on the Goods and may refuse to surrender possession of the Goods until all charges or debts are paid in full.

If such amounts remain unpaid for 30 days after TSS's demand for payment, TSS may sell the Goods at public auction, private sale, or in any other reasonable manner, and shall apply the proceeds of such sale to the amounts owed.

Customer remains responsible for any deficiency outstanding to TSS.

Identified in the warehouse receipts shown in Ex. D § 8, as referenced in Respondent's

Motion for Summary Judgment.

9. The late customs filing resulted from the Complainant's failure to pay customs duties, which led to a customs duty fine of only \$695.00

See Aff. of Ricky Villena, Ex. A ¶ 21, in support of Respondent's Motion for Summary Judgment.